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Art. 25—(cont.)

Clause (1A)

- a. Added by Act 14/1962, subsection 10(2), in force from 01-10-1962.
- b. Act 26/1963, paragraphs 33(2)(a) and (b), in force from 16-09-1963, substituted the words “Article 16A or 17” for the words “Article 17”, and omitted the words “after the registration or naturalization or the coming into operation of this Clause, whichever is the later, and” and added the proviso.
- c. Amended by Act A354, paragraph 8(a) and (b), in force from 27-08-1976, by substituting the words “country outside the Federation” for the words “foreign country”, and inserting after the words “October, 1962,” in the proviso the words “in relation to a foreign country, and before the beginning of January, 1977, in relation to a Commonwealth country.”.

Clause (2)

- a. Act 14/1962, subsection 10(3) and section 32, in force from 01-10-1962, substituted the words “five years (whether beginning before, on or after Merdeka Day)” for the words “seven years” and deleted the words “Subject to Clause (3)” which appeared at the commencement.
- b. Act 26/1963, subsection 33(1) and paragraphs 33(2)(a) and (c), in force from 16-09-1963, deleted the words “(whether beginning before, on or after Merdeka Day)” which had been inserted by Act 14/1962, substituted the words “Article 16A or 17” for the words “Article 17”, and substituted the words “consulate of the Federation” for the words “Malayan Consulate” in paragraph (b).
- c. The words “countries outside the Federation” substituted for the words “foreign countries” by Act A354, paragraph 8(c), in force from 27-08-1976. A new proviso to Clause (2) was added by Act A354, paragraph 8(d), in force from 27-08-1976.
- d. *Paragraph (c):* See Schedule 2 Part III, subsection 4(1).
- e. See Art. 28(3).

Clause (3)

This Clause was repealed by Act 14/1962, section 32, in force from 01-10-1962, and read as follows:

“(3) No person shall be deprived of citizenship under this Article unless the Federal Government is satisfied that it is not conducive to the public good that that person should continue to be a citizen; and no person shall be deprived of citizenship under Clause (1) if, as the result of the deprivation, he would not be a citizen of any country outside the Federation.”.

Other provisions for deprivation of citizenship by registration or naturalization

26. (1) The Federal Government may by order deprive of his citizenship any citizen by registration or by naturalization if satisfied that the registration or certificate of naturalization—

(a) was obtained by means of fraud, false representation or the concealment of any material fact; or

(b) was effected or granted by mistake.

(2) The Federal Government may by order deprive of her citizenship any woman who is a citizen by registration under Clause (1) of Article 15 if satisfied that the marriage by virtue of which she was registered has been dissolved, otherwise than by death, within the period of two years beginning with the date of the marriage.

(3) (*Repealed*).

(4) (*Repealed*).

Deprivation of citizenship of child of person losing citizenship

26A. Where a person has renounced his citizenship or been deprived thereof under Clause (1) of Article 24 or paragraph (a) of Clause (1) of Article 26, the Federal Government may by order deprive of his citizenship any child of that person under the age of twenty-one who has been registered as a citizen pursuant to this Constitution and was so registered as being the child of that person or of that person's wife or husband.

General provisions as to loss of citizenship

26B. (1) Renunciation or deprivation of citizenship shall not discharge a person from liability in respect of anything done or omitted before he ceased to be a citizen.

(2) No person shall be deprived of citizenship under Article 25, 26 or 26A unless the Federal Government is satisfied that it is not conducive to the public good that he should continue to be a citizen; and no person shall be deprived of citizenship under

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Art. 26

Clauses (1), (2) & (3)

- a. Act 14/1962, section 32, in force from 01-10-1962, deleted Clause (3) and amended Clauses (1) and (2), by deleting the words “Subject to Clause (3)” which appeared at the commencement of the Clauses, and by subsection 27(3) made the following provision:

“(3) If within one month after the coming into operation of this section the Minister exercises the power of delegation conferred by section 4 of the said Second Schedule as amended by this section, any order under Article 26 of the Constitution made before that exercise of that power (whether made before or after the passing of the Constitution (Amendment) Act 1960) shall be as valid as if the said section 4 had been in force at the time the order was made as it was in force after the coming into operation of this section, and as if the said exercise of the power of delegation had had effect at that time.”.

- b. The repealed Clause (3) read as follows:

“(3) No person shall be deprived of citizenship under this Article unless the Federal Government is satisfied that it is not conducive to the public good that that person should continue to be a citizen; and no person shall be deprived of citizenship under paragraph (b) of Clause (1) unless the notice required by Article 27 is given within the period of twelve months beginning with the date of the registration or of the grant of the certificate, as the case may be.”

Clause (4)

Act 19/1964, section 3, in force from 30-07-1964, repealed Clause (4). The repealed Clause (4) read as follows:

“(4) Except as provided by this Article, the registration of a person as a citizen or the grant of a certificate of naturalization to any person shall not be called in question on the ground of mistake.”.

See Art. 26B(2), 27(1), 28A(2), Second Schedule, Part III, subsections 4(1) & (3).

Clause (1)(a): See Art. 26A.

Clause (1)(b): See Art. 26B(2).

Clause (2): See Art. 28A(3).

Clauses (3) & (4): See note above.

Art. 26A

1. Added by Act 14/1962, section 11, in force from 01-10-1962.
2. Act 26/1963, subsection 29(4), in force from 16-09-1963, substituted the words “this Constitution or the Constitution of the State of Singapore, and was so registered as being the child of that person or of that person’s wife or husband” for the words “Clause (2) of Article 15”.
3. Act 59/1966, section 2, in force from 09-08-1965, omitted the words “or the Constitution of the State of Singapore”.
4. *See Art. 26B(2) & 28A(2).*

Art. 26B

Added by Act 14/1962, section 11, in force from 01-10-1962.

Clause (2): See Art. 28A(6).

Article 25, paragraph (b) of Clause (1) of Article 26, or Article 26A if the Federal Government is satisfied that as a result of the deprivation he would not be a citizen of any country.

Procedure for deprivation

27. (1) Before making an order under Article 24, 25 or 26, the Federal Government shall give to the person against whom the order is proposed to be made notice in writing informing him of the ground on which the order is proposed to be made and of his right to have the case referred to a committee of inquiry under this Article.

(2) If any person to whom such notice is given applies to have the case referred as aforesaid the Federal Government shall, and in any other case the Federal Government may, refer the case to a committee of inquiry consisting of a chairman (being a person possessing judicial experience) and two other members appointed by that Government for the purpose.

(3) In the case of any such reference, the committee shall hold an inquiry in such manner as the Federal Government may direct, and submit its report to that Government; and the Federal Government shall have regard to the report in determining whether to make the order.

Application of Chapter 2 to certain citizens by operation of law

28. (1) For the purposes of the foregoing provisions of this Chapter—

(a) any person who before Merdeka Day became a federal citizen or a citizen of the Federation by registration as a citizen or in consequence of his registration as the subject of a Ruler, or by the grant of a certificate of citizenship, under any provision of the Federation of Malaya Agreement 1948, or of any State law shall be treated as a citizen by registration and, if he was not born within the Federation, as a citizen by registration under Article 17*;

(b) a woman who before that day became a federal citizen or a citizen of the Federation by registration as a citizen, or in consequence of her registration as the subject of

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

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Art. 27

See Art. 28A(6), Second Schedule, Part III, subsection 4(1) & section 9.

Art. 28

1. *See* Second Schedule, Part III, subsection 10(2).

2. *See* respective State Nationality Enactment 1952.

Clause (3)

Added by Act 26/1963, subsection 33(1), in force from 16-09-1963.

a Ruler, under any provision of the said Agreement or of any State law authorizing the registration of women married to citizens of the Federation or to subjects of the Ruler shall be treated as a citizen by registration under Clause (1) of Article 15;

- (c) any person who before that day was naturalized as a federal citizen or a citizen of the Federation under the said Agreement or became a federal citizen or a citizen of the Federation in consequence of his naturalization as the subject of a Ruler under any State law shall (subject to Clause (2)) be treated as a citizen by naturalization,

and references in those provisions to the registration or naturalization of a citizen shall be construed accordingly.

(2) No person born within the Federation shall be liable by virtue of this Article to be deprived of citizenship under Article 25.

(3) A person who on Merdeka Day became a citizen by operation of law as having been a citizen of the Federation immediately before that day shall not be deprived of citizenship under Clause (1) or (2) of Article 24 by reason of anything done on or before that day; but in the case of any such person Clause (2) of Article 25 shall apply equally in relation to a period of residence in foreign countries beginning before Merdeka Day and in relation to such a period beginning on or after that day.

Deprivation of citizenship of persons becoming citizens on Malaysia Day

28A. (1) (*Repealed*).

(2) For the purposes of Articles 24, 25, 26 and 26A a person who on Malaysia Day becomes a citizen by operation of law because immediately before that day he has the status of a citizen of the United Kingdom and Colonies shall be treated—

- (a) as a citizen by registration if he acquired that status by registration; and
- (b) as a citizen by naturalization if he acquired that status by or in consequence of naturalization,

and references in those Articles to the registration or naturalization of a citizen shall be construed accordingly.

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Art. 28A

This Article was added by Act 26/1963, section 30, in force from 16-09-1963.

Clause (1)

This Clause was repealed by Act 59/1966, section 2, in force from 09-08-1965. It read as follows:

“(1) For the purposes of Articles 24, 25, 26 and 26A a person who is a citizen by operation of law as having the status of a Singapore citizen shall be treated—

- (a) as a citizen by registration, if he acquired that status by registration, or if he acquired it by enrolment when he was (or for those purposes was to be treated as being) a citizen of the Federation by registration; and
- (b) as a citizen by naturalization, if he acquired that status by naturalization, or if he acquired it by enrolment when he was (or for those purposes was to be treated as being) a citizen of the Federation by naturalization;

and references in those Articles to the registration or naturalization of a citizen shall be construed accordingly.”.

(3) Where a woman is under this Article to be treated as a citizen by registration, and the status in consequence of which she is to be so treated was acquired by her by virtue of marriage, then for purposes of Clause (4) of Article 24 and Clause (2) of Article 26 she shall be treated as a citizen by registration under Clause (1) of Article 15.

(4) Where a person born before Malaysia Day is under this Article to be treated as a citizen by registration by virtue of a connection with the State of Sabah or Sarawak and he was not born in the territories comprised in the States of Sabah and Sarawak, Article 25 shall apply to him as if he were a citizen by registration under Article 16A or 17*.

(5) Notwithstanding that a person is under this Article to be treated as a citizen by naturalization, he shall not be deprived of his citizenship under Article 25 if he was born before Malaysia Day in the territories comprised in the States of Sabah and Sarawak and is to be so treated by virtue of a status acquired by or in consequence of naturalization in those territories.

(6) Without prejudice to the foregoing Clauses, where on Malaysia Day a person becomes a citizen by operation of law in virtue of any status possessed by him immediately before that day, but he was liable in respect of things done before that day to be deprived of that status under the law relating thereto, then the Federal Government may by order deprive him of his citizenship, if proceedings for that purpose are begun before September 1965; but Clause (2) of Article 26B and, subject to Clause (7), Article 27 shall apply to an order under this Clause as they apply to an order under Article 25.

(7) Where a person is liable to be deprived of citizenship under Clause (6) and proceedings had before Malaysia Day been begun to deprive him of the status in virtue of which he acquired his citizenship, those proceedings shall be treated as proceedings to deprive him of citizenship under that Clause, and shall be continued as such; but they shall be continued in accordance with the law relating to that status immediately before Malaysia Day, and the functions of the Federal Government in relation thereto shall be delegated to such authority of the State in question as the Federal Government may determine.

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

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Art. 28A—(cont.)

Clause (4)

- a. The words “or with Singapore” which appeared after the words “a Borneo State” and the words “or, as the case may be, in the State of Singapore,” which appeared after the words “the Borneo States” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
- b. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, section 19, in force from 27-08-1976.

Clauses (4) & (5)

The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clauses (6) & (7): See Second Schedule, Part III, subsection 4(2).

*Chapter 3—Supplemental***Commonwealth citizenship**

29. (1) In accordance with the position of the Federation within the Commonwealth, every person who is a citizen of the Federation enjoys by virtue of that citizenship the status of a Commonwealth citizen in common with the citizens of other Commonwealth countries.

(2) Any existing law shall, except so far as Parliament otherwise provides, apply in relation to a citizen of the Republic of Ireland who is not also a Commonwealth citizen as it applies in relation to a Commonwealth citizen.

Certificates of citizenship

30. (1) The Federal Government may, on the application of any person with respect to whose citizenship a doubt exists, whether of fact or of law, certify that that person is a citizen.

(2) A certificate issued under Clause (1) shall, unless it is proved that it was obtained by means of fraud, false representation or concealment of any material fact, be conclusive evidence that the person to whom it relates was a citizen on the date of the certificate, but without prejudice to any evidence that he was a citizen at an earlier date.

(3) For the purpose of determining whether a person was born a citizen of the Federation, any question whether he was born a citizen of another country shall be decided by the Federal Government, whose certificate thereon (unless proved to have been obtained by means of fraud, false representation or concealment of a material fact) shall be conclusive.

(4) *(Repealed)*.

30A. *(Repealed)*.

30B. *(Repealed)*.

Application of Second Schedule

31. Until Parliament otherwise provides, the supplementary provisions contained in Part III of the Second Schedule shall have effect for the purposes of this Part.